

23STCV14887 23STCV14887

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Case Number: 23STCV14887 Hearing Date: June 24, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

TALIA MEYER, an individual, and

JOHNATHAN MEYER, an individual,

Plaintiffs,

vs.

MOHAMMAD SENEMAR, an individual; MOHAMMAD SENEMAR, as Trustee for M T SENEMAR SEPARATE PROPERTY TRUST; and DOES 1 through 100,

Defendants.

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CASE NO.: 23STCV14887

ORDER GRANTING IN PART DEFENDANTS' MOTIONS TO COMPEL FURTHER

MOHAMMAD SENEMAR, an individual; MOHAMMAD SENEMAR, as Trustee for M T SENEMAR SEPARATE PROPERTY TRUST,

Cross-Complainants,

vs.

TALIA MEYER, an individual;

JOHNATHAN MEYER, an individual; and MOES 3 through 20, inclusive,

Cross-Defendants.

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I. BACKGROUND

This case arises out of a habitability dispute between tenant Plaintiffs Talia Meyer and Jonathan Meyer ("Plaintiffs") and landlord Defendant Mohammad Senemar ("Senemar"), in both his individual capacity and his capacity as trustee for Defendant M T Senemar Separate Property Trust ("Trustee") (collectively, "Defendants"). On June 26, 2023, Plaintiffs filed a Complaint, alleging negligence, breach of implied warrant of habitability, and civil penalties for violation of the Los Angeles Rent Stabilization Anti-Harassment Ordinance, § 43.30 et seq. (See Compl., ¶¶ 3-5.)

Defendants now move to compel Plaintiffs' further discovery responses to his Form Interrogatories, Special Interrogatories, Requests for Production of Documents, and Requests for Admission.

II. PROCEDURAL HISTORY

On June 26, 2023, Plaintiffs filed their Complaint, alleging (1) Negligence; (2) Breach of Implied Warranty of Habitability; and (3) Violation of the Los Angeles Rent Stabilization Anti-Harassment Ordinance, § 43.30 et seq.

On September 20, 2023, Defendants filed their Answer.

On October 26, 2023, Defendants filed a Cross-Complaint, alleging (1) Equitable Indemnification; (2) Comparative Indemnity; (3) Declaratory Relief; (4) Equitable Apportionment of Fault; (5) Contribution; and (6) Negligence.

On April 9, 2024, Defendants amended their Cross-Complaint.

On June 11, 2024, the Court's nunc pro tunc order granted in part Plaintiffs' Motion To Further Responses To Plaintiffs' Request For Production Of Documents, Set One And Motion To Compel Defendants' Further Responses To Plaintiffs' Form Interrogatories, Set One. The Court also granted in part Plaintiffs' Motion To Further Responses To Plaintiffs' Request For Production Of Documents, Set One.

On December 23, 2024, the Court denied Plaintiff's Ex Parte Application for an Order to Set an Informal Discovery Conference (IDC) Requirement and to Continue Motions to Compel Set for January of 2025 filed by Talia Meyer.

On January 14, 2025, the Court granted in part Defendants' Motions to Compel Plaintiffs' Further Responses to Defendants' Request For Production of Documents, Set One.

On January 24, 2025, the Court granted Defendants' Motions to Compel Plaintiffs' Further Responses To Form Interrogatories, Set One.

On January 28, 2025, the Court granted Defendants' Motions to Compel Plaintiffs' Further Responses to Special Interrogatories, Set One. The Court corrected this order nunc pro tunc on March 24, 2025 with respect to sanctions.

On December 29, 2025, the Court granted Senemar's Motions to Compel Plaintiffs' depositions.

On March 30, 2026, the Court denied Defendants' Motion for Contempt.

On April 27, 2026, Defendants filed the instant Motions to Compel Further.

On April 28, 2026, the Court granted the parties' stipulation to continue the trial and related dates.

On May 28, 2026, Plaintiff filed an omnibus Opposition.

On June 3, 2026, Defendants filed their Replies.

III. LEGAL STANDARD

A. Request for Production of Documents

In responding to a request for production of documents, a party must provide one of the following: (1) a legally adequate statement of compliance; (2) a statement of inability to comply; or (3) an objection to the particular demand. (See Code Civ. Proc. § 2031.210(a).) [1] If any objections are made, they must: (1) “[i]dentify with particularity any document ... falling within any category of item in the demand to which an objection is being made”; and (2) “[s]et forth clearly the extent of, and the specific ground for, the objection.” (Id. at § 2031.240(b).) A statement that the responding party is unable to comply with a particular demand “shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand”; “shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party”; and “shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (Id. at § 2031.230.)

A party who believes a responding party has served (1) an incomplete statement of compliance, (2) an inadequate, incomplete, or evasive statement of compliance, or (3) an unmeritorious objection can move for an order compelling further responses but must “set forth specific acts showing good cause justifying the discovery sought by the demand.” (See id. at §§ 2031.310(a)-(b)(1).)

B. Interrogatories

A propounding party may move for an order compelling further responses to interrogatories if the responding party produced an evasive or incomplete answer or a meritless or overly general objection in response to an interrogatory. (See Code Civ. Proc. § 2030.300(a).) A motion to compel further responses to interrogatories lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (See id. at § 2030.300.) The moving party must also include reasons why further answers should be ordered: legal or factual arguments why the answers given were incomplete or nonresponsive, or the objections invalid. (See Rules of Court, rule 3.1345(c).)

However, where a timely motion to has been filed, “the burden is on the responding party to justify any objection or failure to fully answer the interrogatories.” (Weil & Brown, Cal. Prac. Guide: Civil Pro. Before Trial (The Rutter Group 2017) ¶ 8:1179.) “The ruling usually is based on consideration of the following factors: [¶] the relationship of the information sought to the issues framed in the pleadings; [¶] the likelihood that disclosure will be of practical benefit to the party seeking discovery; [¶] the burden or expense likely to be encountered by the responding party in furnishing the information sought.” (Columbia Broadcasting System, Inc. v. Superior Court (Rolf) (1968) 263 Cal.App.2d 12, 19.)

C. Requests for Admissions

Under Code of Civil Procedure § 2033.290, a requesting party may move for further responses to requests for admissions when responses have been timely served but the requesting party finds the requests evasive or incomplete or objections without merit or too general. No further responses can be ordered, however, to RFAs that have been unqualifiedly denied, even if the facts are unquestionably true. (See *Holquin v. Superior Court* (Hoage) (1972) 22 Cal.App.3d 812, 820.)

IV. MEET AND CONFER

Before bringing a motion to compel further responses to any discovery request, the moving party must make efforts to meet and confer in good faith in person, by telephone, or by videoconference, and submit a declaration attesting to those efforts. (See Code Civ. Proc. §§ 2031.310(b)(2), 2030.300(b), 2033.290(b), 2016.040.)

“A reasonable and good-faith attempt at informal resolution...requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) In evaluating whether

a meet and confer was reasonable and in good faith, “[a]n evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293-94.)

The Court previously continued the hearing on these Motions to allow the parties to sufficiently meet and confer. The Court ordered the parties to file a Joint Status Update addressing their meet and confer efforts on the eight discovery Motions, which they did.

V. ANALYSIS

Pursuant to the Joint Status Update filed by the parties, the Court will address Defendants’ Motions in the following order: Motion to Compel Further Form Interrogatories (Set Three) – Talia; Motion to Compel Further Special Interrogatories (Set Two) – Talia; Motion to Compel Further Requests for Production of Documents (Set Two) – Talia; Motion to Compel Further Requests for Admission (Set One) – Talia; Motion to Compel Further Form Interrogatories (Set Three) – Jonathan; Motion to Compel Further Requests for Production of Documents (Set Two) – Jonathan; and Motion to Compel Further Requests for Admission (Set One) – Jonathan.

1. Defendants’ Motion FROGS (Set Three) – Talia is Granted.

Defendants request a further response to No. 17.1 which provides, “Is your response to each request for admission served with these interrogatories an unqualified admission? If not, for each response that is not an unqualified admission: (a) state the number of the request; (b) state all facts on which you base your response; (c) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and (d) identify all DOCUMENTS and other tangible things that support your response and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT or thing.” (Sep. Stmt. No. 17.1.)

Defendants argue further response is warranted because Talia’s response to subsections (b)-(d) with respect to RFAs Nos. 5, 7, 10, and 12 fail to identify the names of individuals with knowledge of the facts or identify the supporting documents. (See id.) With respect to RFA No. 12, Defendants also argue Talia’s response is deficient because Talia does not state she attempted to obtain responsive documents or provide information regarding individuals who may possess the relevant documents. (See id.)

Per the joint status update, Defendants state Plaintiffs agreed to supplement sub-part (c) to FROG 17.1 for RFA Nos. 5, No. 7, and No. 27. (Joint Status Update at 3:21-4:2, 8:18-19.) Defendants state Plaintiffs were unwilling to identify their treaters as witnesses for RFA Nos. 10, 11, 12, and 23, contending they are not under an obligation to identify Plaintiff’s treaters as witnesses to these requests. Defendants pointed out to Plaintiffs they provided the treaters as a witness with full contact information with respect to RFA No. 25, yet Plaintiffs contend they are under no obligation to do so for the others. (See id.) Defendants contended that if Plaintiffs are citing to medical records as responsive documents in sub-part (d) that they are obligated to identify the treaters to whom those records correspond as witnesses under sub-part (c). Plaintiffs disagreed and contended that where they did not respond the treaters were not witnesses within the meaning of the request based on how the RFAs were phrased. (See id.)

The Court finds Talia’s response to No. 17.1 is deficient. because it fails to answer sub parts (c)-(d). Talia’s response fails to state individual names of persons with knowledge with respect to RFA No. 5, state that she has made “a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations” with respect to RFA No. 12, and fails to identify specific supporting documents with respect to RFAs Nos. 5, 7, and 10. (See Code Civ. Proc. § 2030.220(c).) She cannot simply refuse to answer these altogether.

The Court GRANTS Defendants’ Motion FROGS (Set Three) – Talia. Talia is ordered to provide further code compliant responses on or before July 10, 2026.

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2. Defendants' Motion SROGS (Set Two) – Talia is Granted in part.

A. No. 102

“Identify each HEALTHCARE PROVIDER with whom YOU treated with or otherwise received a medical evaluation and/or opinion, in connection with YOUR workers compensation claim WC10162183.” (Sep Stmt. No. 102.)

Talia objects on grounds that this request calls for expert testimony, calls for a legal conclusion, and violates Plaintiff's privacy. (See id.)

Defendants argue this response contains no substantive response. (See id.)

The Court finds further response is not warranted. Defendants do not state any legal or factual arguments as to why these objections are invalid. (See Rules of Court, rule 3.1345(c).) It is not clear to the Court the privacy objection is meritless as Defendants do not explain why medical evaluations in connection with Talia's workers' compensation claim is relevant to Plaintiffs' habitability action against Defendants.

The Court DENIES Defendants' Motion as to No. 102.

B. No. 106

“Identify each professional opinion YOU have received that opines that YOU are losing about \$1,500 a month as a result of the loss of YOUR house.” (Sep. Stmt. No. 106.)

Talia asserts the following objections including overbroad, ambiguous, duplicative, attorney-client and work product privilege, privacy rights, collateral source rule, tax privilege, and irrelevant. (See id.)

Defendants argue this response contains no substantive response. (See id.)

The Court finds further response is warranted and overrules Talia's unsubstantiated and meritless objections. Plaintiffs allege economic damages and thus discovery into the amount of damages Talia claims is relevant. The Court GRANTS Defendants' Motion as to No. 106.

In sum, the Court GRANTS IN PART Defendants' Motion SROGs (Set Two) – Talia. The Motion is DENIED as to No. 102 and GRANTED as to No. 106. Talia is ordered to provide further code compliant responses on or before July 10, 2026.

3. Defendants' Motion RFPs (Set Two) – Talia is Granted.

Defendants seek further response to Nos. 40-45, 47-52, 55-58. These requests seek identification of documents in connection with treatment by healthcare providers supporting Talia's claim for damages (No. 40); documents for visits to healthcare providers for the five years prior to December 1, 2022 (No. 41); all medical records pertaining to Talia or her children relating to the subject incident (No. 42); all medical records pertaining to Talia for the five year period preceding the subject incident (No. 43); all documents supporting medical expenses resulting from the subject incident (No. 44); photographs of any ailment related to the subject incident for which Talia sought treatment (No. 45); insurance policies covering damages related to the subject incident (No. 47); all documents from a pharmacy for medications in the five year period preceding the subject incident (No. 48); all medication containers related to the subject incident (No. 49); all documents of communications between Talia and any healthcare provider (No. 50); all documents demonstrating Defendants' knowledge of the alleged mold or asbestos exposure (No. 51); all documents reflecting Talia's claims for worker compensation (No. 52); Facebook and Instagram account data related to events Talia participated in two years prior to December 1, 2022 to present (Nos. 55-56); documents evidencing Talia reported the subject conditions to Los Angeles County Health Department (No. 57); and all documents demonstrating Talia's need for future testing related to the subject incident (No. 58.)

Talia responds to each disputed request by asserting the following objections: overbroad, ambiguous, attorney-client and work product privilege; physician privilege; burdensome; and irrelevant. (See *id.*) Additionally, "Subject to and without waiver of the aforementioned objections...Plaintiff will produce all responsive documents within her possession, custody or control to which she makes no objection." (*Id.*)

Defendants argue further responses are warranted because Talia asserted meritless objections and Defendants must be able to identify the individuals and documents in support of Plaintiffs' allegations. (See *id.*)

In opposition, Talia argues because the Court previously found Defendants' similar response to be code compliant, they should not be compelled to provide further response to these requests. (See Opp. at 7:3-17, citing June 10, 2024 Order.) Talia argues any documents related to workers' compensation claims inherently violates her privacy rights. (See *id.*, at 7:18-19.) Talia further argues no good cause is shown for seeking medical documents unrelated to conditions put at issue in this case. (See *id.*, at 7:20-22, citing *Britt v. Superior Court* (1978) 20 Cal.3d 844, 864.)

Per the Joint Status Update, the parties agreed Plaintiffs' responses were insufficient and a table index would be helpful. (See Joint Status Update at 4:4-8.) Defendants request Plaintiffs provide amended responses that state the Bates numbers into the responses themselves as Defendants are unable to discern which document is responsive to which request. (See *id.*, at 4:8-10.) The parties remain in dispute as to No. 52. (See *id.* at 4:11-16.)

The Court finds Talia's responses are not code compliant, except for No. 52. (See Code Civ. Proc. § 2031.220.) Although Talia affirms she will produce all responsive documents to which no objection is being made, Talia does not identify with particularity any responsive document to which an objection is made and withheld. (See Code Civ. Proc. §§ 2031.220, 2031.240(b)(1).) Thus, it is not clear to Defendants what documents if any are being withheld based on an objection. Additionally, Talia's document production does not identify the specific request number to which the documents respond. (See § 2031.280(a).) Thus, Defendants are unable to discern which document is responsive to which request.

The Court finds Talia's overbreadth objection valid as to past medical documents. The Court agrees with Talia that some requests seeking past medical documents are overbroad, as Nos. 43 and 48 encompass past medical treatment regarding conditions that are not at issue in this action.

The Court finds Talia's relevance objection valid as to No. 52. The Court finds Defendants have not explained why Talia's documents for her workers' compensation claims are relevant to this action. The Court overrules all other objections as they are unsubstantiated.

Accordingly, the Court GRANTS IN PART Defendants' Motion RFPs (Set Two) – Talia. The Court GRANTS as to Nos. 40-45, 47-5, 55-58 and DENIES it as to No. 52. The Court limits Nos. 43 and 48 to documents related to any medical condition or

medication put at issue in this action. Talia is ordered to provide further code compliant responses on or before July 10, 2026.

4. Defendants' Motion RFAs (Set One) – Talia is Granted in Part.

A. No. 3

"Admit YOU have not been diagnosed with any medical condition specifically caused by asbestos exposure." (Sep. Stmt. No. 3.)

Talia asserts the following objections including legal conclusion, burdensome, attorney-client and work product privilege privacy, and tax privilege. (See *id.*) Additionally, "Subject to and without waiver of any objection and to the extent Plaintiff understands this interrogatory, Plaintiff responds as follows: Partially admit. Plaintiff is still in the process of obtaining a diagnosis and going to medical appointments with her medical providers, including her allergist. Plaintiff still has a lot of problems with breathing." (*Id.*)

Defendants argue further response is warranted because Talia's response is evasive. Defendants argue Talia cannot respond "partially admit" if she is in the process of obtaining a diagnosis but hasn't actually obtained a diagnosis at this time. (See *id.*)

In opposition, Talia argues her response is compliant with § 2033.220(b)(1) as her response explains the reason for not asserting an unequivocal admission. (See *Opp.* at 4.:23-26.)

The Joint Status Update reflects the parties' same arguments as to No. 3. (See Joint Status Update at 3:4-7, 8:12:17.)

The Court finds Talia's response is code compliant as it admits in part so much of the matter involved in the request as is true. (See Code Civ. Proc. § 2033.220(b)(1).) The Court finds Talia's response admits the portion of the request that she has no diagnosis to date but qualifies her admission by stating she is "in the process of obtaining a diagnosis".

The Court DENIES Defendants' Motion as to RFA No. 3.

B. No. 26

"Admit YOU have relevant and responsive documents regarding health conditions at issue in this case in your possession, custody or control which are connected to your workers compensation claim WC10162183." (Sep. Stmt. No. 26.)

Talia's objection only response asserts the following objections including legal conclusion, burdensome, attorney-client and work product privilege, privacy, and tax privilege. (See *id.*)

Defendants argue further response is warranted because it fails to respond to the request. (See *id.*)

Per the Joint Status Update, Defendants contend Plaintiffs indicated they are still not willing to respond on attorney-client privilege and/or privacy grounds. (See Joint Status Update at 3:14-15.)

The Court finds further response is warranted and overrules Talia's unsubstantiated objections. Plaintiffs allege they suffered health issues, and this request inquires whether the health conditions at issue in this case are connected to another one of

their claims; this is clearly discoverable. The Court GRANTS Defendants' Motion as to No. 26.

In sum, the Court GRANTS IN PART Defendants' Motion RFAs (Set One) – Talia as to No. 26. The Court DENIES it as to No. 3. Talia is ordered to provide further code compliant responses on or before July 10, 2026.

5. Defendants' Motion FROGs (Set Three) – Jonathan is Granted.

Defendants request a further response to No. 17.1 which provides, "Is your response to each request for admission served with these interrogatories an unqualified admission? If not, for each response that is not an unqualified admission: (a) state the number of the request; (b) state all facts on which you base your response; (c) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and (d) identify all DOCUMENTS and other tangible things that support your response and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT or thing." (Sep. Stmt. No. 17.1.)

Defendants argue further response is warranted because Jonathan's response to subsections (b)-(d) fail to identify the names of individuals with knowledge of the facts or identify the supporting documents as to RFAs Nos. 5, 10, 12, and 27. (See id.) With respect to RFA No. 12, Defendants argue Jonathan's response is also deficient because he does not state he attempted to obtain responsive documents or provide information regarding individuals who may possess the relevant documents. (See id.)

Per the Joint Status Update, Defendants state Plaintiffs agreed to supplement sub-part (c) to FROG 17.1 for RFA Nos. 5, No. 7, and No. 27. (Joint Status Update at 3:21-4:2, 8:18-19.) Defendants state Plaintiffs were unwilling to identify their treaters as witnesses for RFA Nos. 10, 11, 12, and 23 contending that they are not under an obligation to identify Plaintiff's treaters as witnesses to these requests. Defendants pointed out to Plaintiffs that they provided the treaters as a witness with full contact information with respect to RFA No. 25, yet Plaintiffs contend they are under no obligation to do so for the others. (See id.) Defendants contended that if Plaintiffs are citing medical records as responsive documents in sub-part (d) that they are obligated to identify the treaters to whom those records correspond as witnesses under sub-part (c). Plaintiffs disagreed and contended that where they did not respond the treaters were not witnesses within the meaning of the request based on how the RFAs were phrased. (See id.)

The Court agrees with Defendants and finds Jonathan's response to No. 17.1 is deficient. The Court finds Jonathan's response is not straightforward because it fails to provide individual names of persons with knowledge with respect to RFA No. 5, state he has made "a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations" with respect to RFA No. 12, and fails to identify specific supporting documents with respect to RFAs Nos. 5, 7, 10, and 27. (See Code Civ. Proc. § 2030.220(c).)

The Court GRANTS Defendants' Motion FROGS (Set Three) – Jonathan. Jonathan is ordered to provide further code compliant responses on or before July 10, 2026.

6. Defendants' Motion RFPs (Set Two) – Jonathan is Granted.

Defendants seek further response to Nos. 40-45, 47-52, 55-58. These requests seek identification of documents in connection with treatment by healthcare providers supporting Jonathan's claim for damages (No. 40); documents for visits to healthcare providers for the five years prior to December 1, 2022 (No. 41); all medical records pertaining to Jonathan or her children relating to the subject incident (No. 42); all medical records pertaining to Jonathan for the five year period preceding the subject incident (No. 43); all documents supporting medical expenses resulting from the subject incident (No. 44); photographs of any ailment related to the subject incident for which Jonathan sought treatment (No. 45); insurance policies covering damages related to the subject incident (No. 47); all documents from a pharmacy for medications in the five year period preceding the subject incident (No. 48); all medication containers related to the subject incident (No. 49); all documents of communications between Jonathan and any healthcare provider (No. 50); all documents demonstrating Defendants' knowledge of the alleged mold or asbestos exposure (No. 51); all documents reflecting Jonathan's claims for worker

compensation (No. 52); Facebook and Instagram account data related to events Jonathan participated in two years prior to December 1, 2022 to present (Nos. 55-56); documents evidencing Jonathan reported the subject conditions to Los Angeles County Health Department (No. 57); and all documents demonstrating Jonathan's need for future testing related to the subject incident (No. 58.) (See Sep. Stmt.)

Jonathan responds to each disputed request by asserting the following objections: overbroad, ambiguous, attorney-client and work product privilege; physician privilege; burdensome; and irrelevant. (See id.) Additionally, in response to the disputed requests except for No. 52, Jonathan responds "Subject to and without waiver of the aforementioned objections...Plaintiff will produce all responsive documents within her possession, custody or control to which she makes no objection." (Id.)

Defendants argue further responses are warranted because Jonathan asserted meritless objections and Defendants must be able to identify the individuals and documents in support of Plaintiffs' allegations. (See id.)

In opposition, Jonathan argues because the Court previously found Defendants' similar response to be code compliant, they should not be compelled to provide further response to these requests. (See Opp. at 7:3-17.) Jonathan argues any documents related to a workers' compensation claims inherently violates her privacy rights. (See id., at 7:18-19.) Further, Jonathan argues no good cause is shown for seeking medical documents unrelated to conditions put at issue in this case. (See id., at 7:20-22, citing *Britt v. Superior Court* (1978) 20 Cal.3d 844, 864.)

The Court incorporates its reasoning set forth under Motion RFPs (Set Two) – Talia as it is equally applicable here.

Accordingly, the Court GRANTS IN PART Defendants' Motion RFPs (Set Two) – Jonathan. The Court GRANTS as to Nos. 40-45, 47-5, 55-58 and DENIES it as to No. 52. The Court limits Nos. 43 and 48 to documents related to any medical condition or medication put at issue in this action. Jonathan is ordered to provide further code compliant responses on or before July 10, 2026.

7. Defendants' Motion RFAs (Set One) – Jonathan is Granted in Part.

A. No. 3

"Admit YOU have not been diagnosed with any medical condition specifically caused by asbestos exposure." (Sep. Stmt. No. 3.)

Jonathan asserts the following objections including legal conclusion, burdensome, attorney-client and work product privilege privacy, and tax privilege. (See id.) Additionally, "Subject to and without waiver of any objection and to the extent Plaintiff understands this interrogatory, Plaintiff responds as follows: Partially admit. Plaintiff is still in the process of obtaining a diagnosis and going to medical appointments with his medical providers." (Id.)

Defendants argue further response is warranted because Jonathan's partial admission is evasive. Defendants argue Jonathan cannot "partially admit" if he is in the process of obtaining a diagnosis and has not actually obtained a diagnosis at this time. (See id.)

In opposition, Jonathan argues his response is compliant with § 2033.220(b)(1) as his response explains the reason for not asserting an unequivocal admission. (See Opp. at 4.:23-26.)

The Court finds Jonathan's response is code compliant as it admits in part so much of the matter involved in the request as is true. (See Code Civ. Proc. § 2033.220(b)(1).) The Court finds Jonathan's response admits the portion of the request that he has no diagnosis but qualifies his admission by stating he is "in the process of obtaining a diagnosis..."

The Court DENIES Defendants' Motion as to RFA No. 3.

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B. No. 26

"Admit YOU have relevant and responsive documents regarding health conditions at issue in this case in your possession, custody or control which are connected to your workers compensation claim WC10162183." (Sep. Stmt. No. 26.)

Jonathan's objection only response asserts the following objections including legal conclusion, burdensome, attorney-client and work product privilege, privacy, and tax privilege. (See id.)

Defendants argue further response is warranted because it fails to respond to the request. (See id.)

Per the Joint Status Update, Defendants contend Plaintiffs indicated they are still not willing to respond on attorney-client privilege and/or privacy grounds. (See Joint Status Update at 3:14-15.)

The Court finds further response is warranted and overrules Jonathan's unsubstantiated objections. Plaintiffs allege they suffered health issues, and this request inquires whether the health conditions at issue in this case are connected to another one of their claims. The Court GRANTS Defendants' Motion as to No. 26.

In sum, the Court GRANTS IN PART Defendants' Motion RFAs (Set One) – Jonathan. The Court GRANTS it as to No. 26 and DENIES it as to Nos. 3. Jonathan is ordered to provide further code compliant responses on or before July 10, 2026.

VI. CONCLUSION

Based on the foregoing, the Court GRANTS Defendants' Motion FROGs (Set Three) as to Plaintiffs.

The Court GRANTS IN PART Defendants' Motion SROGs (Set Two) – Talia. The Motion is DENIED as to No. 102 and GRANTED as to No. 106.

The Court GRANTS IN PART Defendants' Motion RFPs (Set Two) as to Plaintiffs. The Court GRANTS as to Nos. 40-45, 47-5, 55-58 and DENIES it as to No. 52. The Court limits Nos. 43 and 48 to documents related to any medical condition or medication put at issue in this action.

The Court GRANTS IN PART Defendants' Motion RFAs (Set One) as to Plaintiffs. The Motion is GRANTED as to No. 26 and DENIED as to No. 3.

Plaintiffs are ordered to provide further code compliant responses on or before July 10, 2026.

IT IS SO ORDERED.

DATED: June 24, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.